

Memorandum for Record – Limiting Competition at or below the Simplified Acquisition Threshold

1. Contracting Activity: Medical Readiness Contracting Office – West (MRCO-W), Fort Cavazos Health Contracting Branch, Carl R. Darnall Army Medical Center (CRDAMC), Fort Cavazos, TX 76544

2. Description of Action:

Nature: ☐ New Requirement ☒ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order Number [REDACTED]
☐ Blanket Purchase Agreement (BPA) Number _____
☐ Order/BPA# _____ against FSS Contract # _____
☐ Order # _____ against Multiple Award IDIQ Contract Name or # _____
☐ Order # _____ against a single award IDC Contract # _____
☐ Modification # _____ to existing PO/TO/DO/Call Order # _____

Pricing/Contract Type: ☒ Fixed Price

Funds: X Other Funds: _DHP_____ FY: 25

Name of Proposed Contractor(s) and Address:

Advance Sterilization Products (ASP)
33 Technology DR
Irvine, California
92618-2346, United States

Brand Name Buy: ☐ Yes ☒ No

[REDACTED]

[REDACTED]

[REDACTED]

3. Description of Services or Supplies: The purpose of this requirement is to provide EvoTech Chemical Sterilizer and STERRAD™ 100NX System (ST100NX) maintenance for the Internal Medicine Department at Irwin Army Community Hospital (IACH), Fort Riley, KS. This service requirement is commercial in nature and will be a firm-fixed price contract. FY25 funds are available.

Period of Performance:

[REDACTED]		[REDACTED]	
[REDACTED]		[REDACTED]	
[REDACTED]		[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]
[REDACTED]		Total	
[REDACTED]		\$218,473.92	

4. Authority:

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

5. Reasons for Authority Cited:

- a. Advance Sterilization Products (ASP) is the only reasonable source who can provide the required services. The Government-owned EvoTech Chemical Sterilizer and STERRAD™ 100NX System (ST100NX) equipment requires continued maintenance servicing. On 20 March 2025, Advance Sterilization Products (ASP) [REDACTED], the manufacturer for the Evotech Sterilizer systems, provided a sole-source letter stating that ASP is the manufacturer and sole authorized distributor and service provider for EvoTech and STERRAD equipment. Advance Sterilization Products (ASP) does not allow other service providers to perform maintenance on their system.
- b. Due to the nature of the services to be provided, this requirement has historically been procured as sole source to the manufacturer of the equipment to maintain the operational integrity of the equipment. Authorized contractors will not honor the warranty or subsequent repair of equipment for services provided by other companies.

[REDACTED]

[REDACTED]

[REDACTED]

- c. The vital importance of the EvoTech Chemical Sterilizer and STERRAD™ 100NX System (ST100NX) equipment, and the potential threat to life if not properly maintained, mandates that the equipment be maintained by the manufacturer or their approved maintenance providers.

6. Publicizing Contract Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☐ do not apply due to the \$ threshold, ☒ apply and will be followed, or ☐ do not apply due to an exception at 5.202 _____.

Requirement to post justification in accordance with FAR 8.405-6(b)(3), FAR 13.105(c), or FAR 16.505(a)(4)(iii)(A)

☒ Action is NOT a brand name restriction and is under \$250K, no posting required.

☐ Action is a brand name restriction, under \$25K, no posting required

☐ Action is a brand name restriction, over \$25K. It will be redacted and posted with the solicitation.

☐ Action is a brand name restriction over \$25K but will not be posted due to exception:

- ☐ FAR 6.305(f)
- ☐ FAR 8.405-6(b)(3)(iii)(A)
- ☐ FAR 8.405-6(b)(3)(iii)(B)
- ☐ FAR 8.405-6(b)(3)(iii)(C)
- ☐ FAR 16.505(a)(4)(iii)(C)

7. Market Research: Market Research demonstrates that this service requirement is commercial in nature. Market Research was conducted from 20-27 March 2025 and compiled by Contract Specialist Perry J. Cannon. Per FAR 19.502-2, a review for small business socioeconomic contracting programs was conducted. A search of the Small Business Administration's (SBA) Dynamic Small Business Search (DSBS) using NAICS **811210 – Electronic and Precision Equipment Repair and Maintenance**, and using keyword, 'Evotech, and 'Sterilizer'. There were three (3) Responses from the search.

Though there were three (3) 'SDVOSB or Joint Venture', and WOSB vendors that may potentially provide the requested services. Advance Sterilization Products (ASP) (8AXP0) Sole Source letter states that the manufacturer does not currently endorse or have a formal business relationship with any small business, including Service-Disabled Veteran-Owned Small Business (SDVOSB).

A Sources Sought Synopsis was not posted. This requirement is under \$250K and the manufacturer does not authorize SB distributors or service providers.

[REDACTED]

[REDACTED]

Due to Advance Sterilization Products (ASP) sole-source status, this requirement cannot be competitively solicited. The equipment and all parts associated are sole sourced and can be ordered through Advance Sterilization Products (ASP). Advance Sterilization Products (ASP) is the only authorized distributor/dealer.

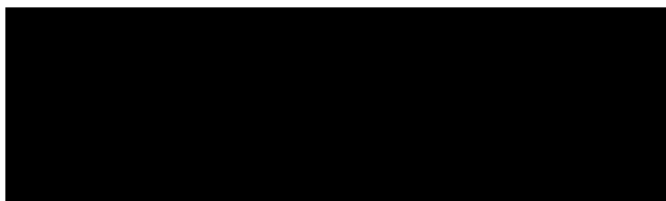
In consideration for the Irwin Army Community Hospital's need for EvoTech Chemical Sterilizer and STERRAD™ 100NX System (ST100NX) equipment Maintenance Service, the Contracting Officer has determined that only one source is reasonably available, and there is not enough justification to support a competitive Small Business Set-aside for this acquisition. Advance Sterilization Products (ASP), is a Large Business (LB) and under NAICS Code 811210, is the sole-source service provider of the maintenance services for EvoTech Chemical Sterilizer and STERRAD™ 100NX System (ST100NX) equipment.

In accordance with FAR 13.106-1(b)(1)(i), Contracting officers may solicit from one source if the contracting officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name, or industrial mobilization).

Market research reflects that though sterilizer equipment may be competitively solicited, once purchased, subsequent maintenance service agreements are traditionally sole sourced to the manufacturer and their authorized third-party service providers throughout the life cycle of the equipment. As part of the efforts to obtain competition, a Notice of Intent to Award Sole Source (w/ the redacted LSJ), and a Notice of Award will be posted in Sam.gov.

8. Other Facts: This requirement was previously solicited as sole-source from Advance Sterilization Products (ASP). The contract was awarded under W81K00-24-P-0089.

9. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.



10. Contracting Officer Certification/Approval:



I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable based upon and assessment of previous prices paid within the last 18 months for similar services.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition funds are available and provided that the services herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]